

# **LAW OF THE REPUBLIC OF MOLDOVA ON EDUCATION<sup>1</sup>**

No. 547 of 21 July 1995

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Parliament adopts the present law.

In the present law, the term "education" shall designate an organized process of training and tuition, by means of which a person reaches a certain level of physical, intellectual and spiritual training, established by the state, and obtains the respective certificate of studies. The education system shall comprise the network of education institutions of various types and forms of ownership, the curriculum, the state educational technologies and standards of different levels and directions, as well as the education management bodies, the institutions and the companies subjected to them.

## **Chapter I GENERAL PROVISIONS**

Article 1. The object of the Law on education

The present law shall determine the state policy in the field of education and shall regulate the organization and the functioning of the education system.

Article 2. Legislation on education

The legal background of education shall comprise:

- a) the Constitution of the Republic of Moldova;
- b) the Concept of education development in the Republic of Moldova;
- c) the present law and other legislative acts adopted in compliance with it.

Article 3. Education - national priority

The education in the Republic of Moldova shall constitute a national priority.

Article 4. Principles of education

- (1) Education shall constitute, under a conceptual approach, a unitary system implemented in a diversity of educational structures, forms, contents and technologies.
- (2) The state education policy shall rely on the principles of humanitarization, accessibility, adaptability, creativity and diversity. Education shall be democratic and humane, open and flexible, formative-developing and shall rely on the values of national and universal culture.
- (3) State education shall be laic, void of any ideological-party, political, racial and national discrimination.

*[Para.3 Article 4 as modified under Law no. 844-XIV of 25.02.2000]*

- (4) The moral-spiritual education in the primary state education institutions shall compulsory make part of the curriculum, and in secondary and higher education institutions shall be an optional study course. This course shall be taught by persons with an appropriate vocational training. The

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<sup>1</sup> <http://www.dejure.md/?go=utile&n=489>

elaboration of the concept, of curriculum and the training of teaching staff for the course "Moral-spiritual education" shall constitute the prerogative of the Ministry of Education.

*[Para.4 Article 4 as modified under Law no. 844-XIV of 25.02.2000]*

(5) State education shall be free of charge.

#### Article 5. Objectives of education

- (1) The major educational objective of school shall constitute the free and harmonious development of the human being and the formation of a creative personality, able to adapt to continuously changing conditions of life.
- (2) Education shall pursue:
  - a) the development of children's personality, of their capacities, as well as their spiritual and physical abilities according to their maximum potential;
  - b) nurturing the respect for human rights and freedoms, notwithstanding their ethnical and social origin, and their attitude towards religion - principles set down in the United Nations Charter;
  - c) preparing children for assuming responsibilities of living in a free society, in the spirit of understanding, peace, tolerance, equality between sexes and friendship among all peoples, ethnical, national and religious groups;
  - d) nurturing the feeling of need to work for one's own and for society's good, of respect for those who produce material and spiritual goods;
  - e) nurturing the respect for parents, people's identity, language and cultural values, as well as for national values of the country they live in, of the country they may be originating from and of civilizations different from their own;
  - f) nurturing the sense of responsibility towards the environment, creating his ecological conscience;
  - g) insuring a multilateral physical training, bearing a professional applicative character for studious youth, creating the feeling of need for physical practice and sport during their entire life.
- (3) Scholars and students shall be educated in the spirit of fundamental civic duties, enshrined in the Constitution of the Republic of Moldova, among which the devotion toward the country, care for consolidating the Moldovan statehood, the conscientious performance of incumbent obligations.

#### Article 6. Right to education

- (1) The right to education shall be secured notwithstanding the nationality, sex, age, origin, social status, political or religious affiliation, criminal record.
- (2) The State shall secure equal access opportunities to state lyceum, vocational and higher education, depending on the abilities and capacities.

#### Article 7. State educational standards

- (1) The education system shall rely on state educational standards, which secure the recognition of national acts certifying studies. The standards shall establish the minimum mandatory requirements without various levels and stages of education. The manner of elaboration, approval and implementation of educational standards shall be established by the Ministry of Education.

*[Para.1 Article 7 as modified under Law no. 1208-XIV of 28.07.2000]*

- (2) The educational standards shall constitute the ground for the objective assessment of the general and vocational training level of graduates, notwithstanding the type and form of education.
- (3) The implementation of educational standards shall be secured also by means of organizing services of psychological assistance of school and vocational orientation for scholars at all levels and stages of education. The duties of the psychological assistance service shall be determined by its statute, approved by the Ministry of Education.

#### Article 8. Teaching language

- (1) The State shall secure, according to the Constitution and articles 18, 19 and 20 of the Law on the functioning of spoken languages on the territory of the Republic of Moldova, the right to choose the education and training language at all levels and stages of education.
- (2) The citizens' right to education and training in their native language shall be secured by creating the necessary number of education institutions, of classes, groups, as well as of conditions for their activity.
- (3) Studying the official language of the Republic of Moldova shall be mandatory in all education institutions. The requirements for its teaching and assimilation shall be regulated by the state educational standard. The Ministry of Education and the local public administrative authorities shall be responsible for insuring the assimilation process of the official language in all education institutions.

*[Para.3 Article 8 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 9. General compulsory education

The duration of general compulsory education shall be of 9 years. The compulsory attendance to school shall cease at the end of the education year when the student reaches 16 years of age.

#### Article 10. Acts certifying studies

- (1) State and private education institutions, accredited as provided under the law, shall issue to the persons who have passed the graduation exams acts certifying their studies, in which shall be mentioned the graduated level and stage of education, the field and the professional qualification degree.
- (2) The persons who have not passed the graduation exams shall receive a certificate and, upon request, the copy of their transcript paper.
- (3) The acts certifying studies acknowledged by the Ministry of Education shall grant the holder the right to continue his studies to the next level of education or to be employed to the position according to his qualification.
- (4) The types and patterns of acts certifying studies shall be approved by the Ministry of Education. The acts certifying studies shall be drawn up in the state official language and in the language the studies have been performed, and in higher education institutions - in the state official language, in the language the studies have been performed, in French or English.

#### Article 11. Employment

The employment of graduates of education institutions shall be performed according the labor legislation.

## Chapter II SYSTEM OF EDUCATION

#### Article 12. Structure of the system of education

The system of education, taking into account the need for the continuity of education and of the age psycho-physiological particularities, shall be organized on levels and stages and shall have the following structure:

- I. Pre-school education
- II. Primary education
- III. Secondary education:
  1. General secondary education:
    - a) Gymnasium education;
    - b) Lyceum education; secondary general education schools;
  2. Vocational secondary education
- IV. Higher education:
  1. Short term (college);
  2. University
- V. Post-graduate education

The system of education shall include also other forms of education:

- special education;
- complementary education;
- education for adults.

#### Article 13. Organization of education

- (1) In the Republic of Moldova there may be state and private education.
- (2) The education institutions shall enjoy legal capacity.
- (3) Education may be performed as day school, evening school, non-attendance, alternative education, individual study, self- training.
- (4) In pre-school education, a group shall be comprised of at most 10 children in the nursery and 15 children in the kindergarten. In primary, gymnasium and lyceum education, the class shall be comprised of at most 20 students, and in the vocational secondary and higher education, the group shall not exceed 25 persons.

*[The application of Para.4 Article 13 shall be suspended for the period of 1999 as prescribed under the Law no. 216-XIV of 12.12.1998]*

- (5) The system of education shall be open, being secured the possibility of passing from one type to another, under the terms prescribed by the relevant regulation, adopted by the Ministry of Education.

#### Article 14. Grading

- (1) In education institutions the assessment of knowledge shall be performed by assigning grades from 10 to 1 and by the qualification "pass", "fail". The knowledge graded with 4, 3, 2, 1 and the qualification "fail" shall be unsatisfactory.
- (2) The scholar's conduct in the pre-university education shall be assessed with the qualification "excellent", "good", "satisfactory", "unsatisfactory".

#### Article 15. Children assessment

- (1) The assessment of psychical-physiological particularities of abilities and capacities of scholars as basis for the differentiation of the instructive-educative process shall be mandatory.

- (2) Testing children regarding their enrollment in the first grade in state schools shall be forbidden, save for the enrollment in art or sport schools.

#### Article 16. Duration of the school year

- (1) The school year in the pre-university education shall begin on September 1<sup>st</sup> and shall last 35 weeks, distributed on relatively equal quarters, separated by holidays (vacation).
- (2) The university year in the higher education shall begin on September 1<sup>st</sup> and shall last 42 weeks, distributed in two equal semesters, to which are added two exam sessions, internship period and two vacations.

*[Para.2 Article 6 as modified under Law no. 1208-XIV of 28.07.2000]*

- (3) The period and the duration of vacations, as well as the duration of classes (lessons) in pre-university education and of academic classes in the higher education shall be established by the Ministry of Education.

#### Article 17. Pre-school education

- (1) Pre-school education shall represent the first stage of the education and training system. It shall represent a system of ante-pre-school and pre-school institutions of different types, both state and private, with different functioning programs, which correspond to the education standards.
- (2) Pre-school education shall pursue as a main goal the child's multilateral preparation for life, in order to be integrated in school activities, to develop their creative capacities by making use of their psycho-physiological and intellectual potential.
- (3) The education of children less than 3 years of age shall be performed, usually, in families that, in this case, shall enjoy the State's support, according to the legislation in force.
- (4) Upon the request of parents, by the decision and with the contribution of local public administrative authorities or of the owners (in case of private institutions), there may be organized pre-school institutions for children under 3 years (nurseries).
- (5) The State shall secure the material and financial support for child education in state nurseries and kindergartens.
- (6) Pre-school education for children aged 3 to 6(7) years shall be organized in pre-school institutions of different types and forms of ownership or in kindergarten-primary schools, with different activity programs, depending on the development level of children and on options of parents.
- (7) Preparing pre-school children for school shall be compulsory starting from the age of 5 and shall be performed in preparation groups, in kindergarten or school, or, upon the request of parents, in their families. The State shall secure material and financial conditions necessary for the appropriate performance of the instructive-educative process in preparation groups. Depending on local conditions, the latter may be organized also within primary schools.
- (8) Local public administration authority shall be bound to maintain the system of existent pre-school institutions and, if necessary, to open new ones, securing their material and financial support, according to the social needs of the population.
- (9) The State shall guarantee the education and taking care of children of ante-pre-school age physically or mentally disabled, as well as of orphan children.

#### Article 18. Primary education

- (1) Primary education shall contribute to the formation of the child as free and creative personality, to the development of his intellectual capacities, to his sustainable reading, writing and calculation habits, securing the development of his communication abilities and abilities to speak in a foreign language.

- (2) Primary education shall comprise grades I-IV and shall be organized as day school in primary schools, which can function as separate units, or incorporated in general secondary schools.
- (3) In the 1<sup>st</sup> grade shall be accepted children aged 6-7 at the beginning of the school year. Schooling shall become mandatory at the age of 7.
- (4) The beginning of schooling for children aged 6 shall be established with the consent of parents, depending on the level of somatic-psychic maturity, as established by the Ministry of Education.
- (5) In primary education there may function classes or groups with extended program.
- (6) In rural areas may function primary classes with a number of children respectively aged, different from the one established under Article 13 para.4, as well as classes with simultaneous teaching, upon the decision of the local public administrative authority, with the consent of the Ministry of Education.

#### Article 19. Gymnasium education

- (1) Gymnasium education shall be compulsory and shall be organized as a day education with grades V-IX.
- (2) Gymnasium education shall secure the development of scholars' intellectual abilities and capacities, perceived as a defining level for the formation of the personality, vocational orientation and preparation for lyceum or vocational education.
- (3) In gymnasium education shall be encouraged the in-depth study of some basic and optional disciplines, including those of vocational training.
- (4) In gymnasium education shall be accepted without any contest all students who have graduated primary schools.
- (5) In gymnasium education may function groups or classes with prolonged program.
- (6) Gymnasium education shall be completed with graduation exams, comprising several tests, and with having issued a certificate of gymnasium studies.
- (7) The organization of graduation exams for the gymnasium education shall be established by the Ministry of Education and Science.

#### Article 20. Lyceum education

- (1) Lyceum education shall secure a fundamental theoretical training and the formation of a complete general culture, necessary for continuing studies in higher education or in vocation secondary education institutions.
- (2) Lyceum education shall be organized as a day education in general theoretical lyceums and theoretical lyceum with one or several profiles or in lyceum classes in other schools, as well as in poly-profiled vocational schools.
- (3) The duration of lyceum education with day attendance shall be of 3 years (grades X-XII).
- (4) Evening lyceum education (grades X-XIII) may be organized for employed graduates of gymnasium education and of vocational education.
- (5) The matriculation in lyceum education shall be contest- based, where may participate graduates of gymnasiums or of poly-profiled vocational schools of the respective level, under the terms established by the Ministry of Education.
- (6) The lyceum education shall be completed with baccalaureate exam, organized as established by the Ministry of Education.
- (7) After passing the baccalaureate exam, shall be issued the baccalaureate diploma, qualifying for enrollment in higher education.
- (8) The lyceum education graduates who have passed the lyceum grades and the baccalaureate exam with exceptional results shall receive a merit diploma, as provided by the Ministry of Education.

(9) In case of failure, the baccalaureate exam may be taken at most two times during the next three years.

(10) Lyceums shall be created and liquidated by a Government decision, at the proposal of the Ministry of Education, with the joint consent of local public administrative authorities, teaching personnel and parents.

(11) Lyceums may be founded also with universities or other higher education institutions, usually for children with special abilities and performances.

#### Article 21. Organization of vocational secondary education

(1) Vocational secondary education shall insure initial training for a profession, as well as the in-service training and recycling of qualified workers and of unemployed persons.

(2) The State shall secure the vocational training for a profession for gymnasium graduates who have not reached the age of 16 and do not attend lyceums (general secondary schools).

(3) Vocational secondary education shall be organized as day or evening school in poly-profiled vocational or profession schools.

(4) The list of professions for which vocational training is performed shall be approved by the Government, at the proposal of the Ministry of Economy, Ministry of Labor, Social Security and Family and of the Ministry of Education, jointly with other ministries and departments.

(5) The creation and the liquidation of vocational secondary education institutions shall be performed by the Government, at the proposal of the Ministry of Education, of other ministries and departments, of local public administrative authorities, having consulted the interested persons.

(6) Vocational secondary education institutions shall draw up admission plans, taking into consideration the contracts concluded with interested economic units.

(7) The state and private companies shall disburse in the state budget, apart from the means necessary for their own personnel, at least 2 % from the labor remuneration fund, for vocational training, for the creation and consolidation of the didactical technical-material basis. The so disbursed means shall be included in the production expenditures.

*[The application of Article 21 para.7 shall be suspended for the period of year 1997 as prescribed under the Law no. 1127-XIII of 21.03.1997]*

(8) In vocational secondary institutions, the initial and in-service training, recycling of workers and of unemployed persons shall be performed on a contract-basis and shall be financed from employment funds.

(9) The internship, vocational secondary education shall be performed on a contractual basis at state or private companies.

(10) Economic agents of state ownership with more than 20 employees shall be bound to offer working places for internship in the ratio-one intern to 10 employees, taking into consideration also the possibilities of the company.

#### Article 22. Poly-profiled vocational school

(1) The poly-profiled vocational school shall be organized in three stages. It shall perform the successive vocational training in a large spectrum of qualification, from worker to technician, securing meanwhile profile lyceum education.

*[Para.1 Article 22 as modified under Law no. 1208-XIV of 28.07.2000]*

- (2) The enrollment in poly-profiled vocational schools shall be performed on a contest basis, with no restrictions for gymnasium, general secondary school and lyceum graduates, with or without a baccalaureate diploma.
- (3) The duration of the education in poly-profiled vocational schools shall not exceed 5 years for gymnasium and incomplete secondary school graduates and 3 years for lyceum and general secondary school graduates.
- (4) Stage I of poly-profiled vocational schools shall secure the training for a profession of qualified worker and shall be completed with obtaining a qualification certificate, which entitles the holder to be employed, to continue the education at Stage II of the poly-profiled vocational school.

*[Para.4 Article 22 as modified under Law no. 1208-XIV of 28.07.2000]*

- (5) Stage II shall secure a more in-depth professional training up till the level of magister and the professional initiation in entrepreneurship. Stage II shall be completed with qualification exams and a qualification certificate, which entitles the holder to be employed, to continue the education at Stage III.

*[Para.5 Article 22 as modified under Law no. 1208-XIV of 28.07.2000]*

- (6) At Stage III shall continue the vocational training up till the level of technician (technologist), completed with qualification exams and with a diploma of technician (technologist).
- (7) The poly-profiled vocational school graduates of Stage II and III may take part at the admission contest in higher education at the initially studied profile or, after successfully taking the difference exams, in the XII grade in lyceum at any desired profile.

*[Para.7 Article 22 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 23. Profession school

- (1) Profession school shall guarantee the vocational training in a one or several related professions.
- (2) In profession schools may be accepted gymnasium, lyceum and general secondary school graduates. As exception, may be formed with the approval of the Ministry of Education groups of students who have not graduated 9 grades, but who have reached the age of 16.
- (3) The education in profession schools shall last for a duration of 0.5 to 1.5 years and shall be completed with exams and with a qualification certificate, which entitles the holder to practice the acquired profession.
- (4) Profession schools may function as an autonomous unit or within economic units that have obtained the appropriate authorization.
- (5) Groups of vocational training following the curriculum of profession schools may be organized also within poly-profiled vocational schools.

#### Article 24. Artistic and sport education

- (1) Artistic and sport education shall be organized for children with abilities in music, choreography, plastic and theatre arts, sport, in lyceum with I-XII grades or with IV-XII grades, depending on the profile.
- (2) The artistic and sport education shall be organized on levels similar to those of general secondary education. Students may transfer from one type of education to another.
- (3) Enrollment in artistic and sport education shall be performed only after having tested the profile specific abilities, after successfully passing exams and on a contest basis.

#### Article 25. Organization of higher education



- (1) Higher education shall pursue:
  - a) to form a multilaterally developed and creative personality, to initially and in-service train, and recycle at a higher level of specialists and of scientific personnel in different fields;
  - b) to guarantee the personality aspirations to deepen and to extend his studies;
  - c) to promote scientific research and the implementation of its results;
  - d) to maintain, to enrich and to impart the scientific, technical, artistic and cultural legacy.
- (2) Higher education shall be performed by higher education institutions: college, university, academy and institutes.
- (3) There shall be allowed under the terms of the law to organize higher education institutions in a teaching language other than the state official language.
- (4) The admission in higher education shall be performed on a contest basis, relying on the baccalaureate diploma, on the general studies certificate or on an equivalent act of studies, following general criteria established by the Ministry of Education.
- (5) The didactical activity in higher education shall be organized by day, evening or non-attendance education. The duration of studies of evening and non-attendance education shall be longer with one year comparing to day education duration.
- (6) Students may attend simultaneously two specializations by successfully passing entrance exams. In this case, students shall benefit from a state scholarship for a maximum duration of one specialization.
- (7) Students may obtain higher education in shorter terms, by passing the exams provided by the curriculum.
- (8) Higher education graduates may follow a new specialization having paid the tuition fee, under the terms established by the Ministry of Education.
- (9) In higher education, the didactical activity shall be carried out in a close correlation with scientific activity in different fields.

#### Article 26. Short term higher education (colleges)

- (1) Short-term higher education shall have a duration of 2-3 years and shall be organized in colleges.
- (2) Colleges may function as autonomous units, within university education institutions or may be affiliated to them.
- (3) The admission in colleges shall be performed, usually, for lyceum, general secondary school graduates based on the criteria set for university education.
- (4) Education in colleges shall be completed with graduation exams and (or) with submitting and defending a diploma thesis. The graduates shall receive diplomas of short-term higher education, consequently acquiring qualification in the studied profile and specialization.
- (5) College diploma graduates may continue their studies in university education, within the initially studied profile.

#### Article 27. University higher education

- (1) University higher education shall be organized in institutes, universities and academies.
- (2) The duration of studies for day courses of higher education shall be of 4-6 years, depending on the profile.
- (3) The entrance contest to university higher education shall be organized by the respective institutions following the general criteria established by the Ministry of Education.
- (4) University higher education shall be completed with taking the license exam, including a profile test, a specialization test and a diploma project or thesis. The license exam shall be carried out following general criteria established by the Ministry of Education. Medical higher education shall

be completed with taking the graduation exam and obtaining a specialist diploma. The license diploma shall be issued after graduating the residency cycle.

*[Para.4 Article 27 as worded under Law no. 1208-XIV of 28.07.2000]*

- (5) The graduates who have successfully passed the two tests of the license exam and have submitted and defended their diploma project or thesis shall be awarded the title of licensed in the studied profile or specialization and shall be issued a license diploma. The graduates who have successfully passed the two tests of the license exam and have not submitted and defended their diploma project or thesis shall be issued the diploma of university higher education.

*[Para.5 Article 27 as worded under Law no. 1208-XIV of 28.07.2000]*

- (6) The graduates who have not passed the license exam shall receive, upon request, a certificate. In case of failure to pass, the license exam may be taken at most two times during the next three years.

*[Para.6 Article 27 as modified under Law no. 1208-XIV of 28.07.2000]*

- (7) The holders of license diplomas shall benefit from an additional payment to their salary, amounting to a minimal salary.

*[Para.7 Article 27 as introduced under Law no. 1208-XIV of 28.07.2000]*

#### Article 28. Post-graduate education

- (1) Postgraduate education shall be organized for holders of license diplomas and of postgraduate diplomas and shall guarantee the specialization in a field or broadening and improving the scientific and pedagogical training.

- (2) The post graduate education shall be carried out as Master's, Doctor's, post doctor's, residency, secondment, specialization and improvement courses, organized by higher education institutions certified in this regard or by scientific research institutions. In medical education, post graduate tuition, as residency shall be compulsory.

*[Para.2 Article 28 as amended under Law no. 1208-XIV of 28.07.2000]*

- (3) Postgraduate courses shall be organized for graduates with a diploma of higher education and shall last, depending on the profile, at most 12 months, as established by the university senate.

- (4) In post graduate education usually shall be granted state scholarships to be obtained on a contest basis.

- (5) For non-budgetary sphere personnel, the vocational training and recycling shall be performed on a contractual basis, contracts signed between training institutions and ministries, departments, economic agents, as well as individual contracts concluded with the training institution.

- (6) The training of personnel, including didactical and scientific staff, may be performed also abroad, based on some bilateral agreements.

- (7) The coordination and the regulation of the vocational training and recycling process shall fall under the ambit of competence of relevant ministries, of the Ministry of Education, Ministry of Labor, Social Security and Family.

- (8) The training courses shall be completed with taking some tests and a graduation certificate shall be issued, which shall be taken in consideration when reconfirming the position, when awarding didactical degrees and titles or qualification categories.

#### Article 29. Specialized post-graduate education

- (1) The graduates holding a license diploma may continue their education in specialized post-graduate education, organized in university higher education institutions, scientific research institutions or other institutions, which hold a license in the field of education. The duration of specialized education shall be of 1-2 years.

[Para.1 Article 29 as worded under Law no. 1208-XIV of 28.07.2000]

- (2) The admission to specialized postgraduate education shall be performed on a contractual basis, relying on the criteria established by the Ministry of Education and the relevant ministries, with the advisory opinion of the Superior Attestation Committee.
- (3) The specialized post-graduate education shall be completed with issuing a diploma and granting the title of master.
- (4) The master diploma shall grant the preferential right to hold positions in higher education institutions or in scientific research institutions and to participate at the admission to doctoral studies in the acquired specialization.

#### Article 30. Doctoral studies

- (1) Doctoral studies shall represent a form of post-graduate education, which is performed by means of a scientific research activity for a duration of 3 years in day education and of 4 years in non-attendance education.
- (2) The admission to doctoral studies shall be performed on a contest basis, at which may participate the holders of master and license diplomas.
- (3) The entrance criteria, the organization and the order of doctoral studies shall be established by the Superior Attestation Committee with the advisory opinion of the Ministry of Education, Science Academy and of relevant ministries.
- (4) Mentors in doctoral studies shall be persons with scientific titles of *doctor habilitat*<sup>2</sup> and with the consent of the Superior Attestation Committee may also be doctor in science with the didactical title of university professor, university associate professor (*docent*), or senior scientific researcher.
- (5) Doctoral studies shall be completed with the public presentation of a thesis before a specialized scientific board, accredited for this purpose and awarding the scientific title of doctor (in the respective scientific field), according to the criteria established by the Superior Attestation Committee.
- (6) In order to complete the doctor's thesis there may be granted a leave of 3-12 months, with or without maintaining the salary, according to the decision of the Ministry of Education.

#### Article 31. Post-doctoral studies

- (1) Post-doctoral studies may be performed in higher education institutions or in scientific research institutions. The matriculation to post-doctoral studies shall be performed for holders of doctor's degree diploma.
- (2) The admission to post-doctoral studies shall be made upon request.
- (3) The persons who follow post-doctoral studies may benefit from creation leaves up till 2 years, having their salary maintained.
- (4) Post-doctoral studies shall be completed with the public presentation of a thesis before a scientific board, approved by the Superior Attestation Committee and awarding the second degree scientific title - *doctor habilitat*.
- (5) The criteria for the elaboration of the thesis and for awarding the title of *doctor habilitat* shall be established by the Superior Attestation Committee.

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<sup>2</sup> Equated to *full professor* title (transl.note).

#### Article 32. Scientific research in education

- (1) The scientific and methodology basis for the functioning of the education system shall be elaborated by higher education institutions; scientific research in the field of education, psychology and of didactical methodology shall be performed, on a contractual basis, by permanent scientific staff, by temporary scientific groups, by researchers.
- (2) In higher education institutions the scientific research and project elaboration activity shall be performed at chairs, in laboratories, sections or departments. At this activity may also participate students, whose intellectual property rights are protected under the Law on intellectual property and related rights. The scientific research activity shall be performed in collaboration with the Science Academy.
- (3) The fundamental scientific research programs, as well as other project-research programs shall be assessed and approved by the Ministry of Education and shall be funded on a contest and contractual basis.
- (4) The state shall secure and create incentives for scientific collaboration and cooperation with prestigious university centers from abroad, shall grant facilities for scientific research equipment procurement.

#### Article 33. Special education

- (1) The special education shall be a component part of the education system and shall pursue the aim to educate, train, recuperate and socially integrate pre-scholars and students with psychical, physical, sensor, speech, social-affective and behavior or associated deficiencies.
- (2) The establishment of the diagnosis of children with psychical and physical deficiencies shall be performed in the presence of parents or of guardians, by medical-psycho-pedagogical services, organized by a Government decision and subordinated to the Ministry of Education.
- (3) The special education shall be organized in special instructive-educational institutions of boarding school type or with a prolonged program.
- (4) The special education institutions shall be created and liquidated by the Government, at the proposal of the Ministry of Education and of local public administration authorities.
- (5) Special education shall be performed according to education plans, curriculum and didactical technologies elaborated depending on the type and the degree of the disability and focused on compensating and correcting the deficiency, on recuperation and social integration.
- (6) The state shall secure the free of charge maintenance of children in special instructive-educative institutions.
- (7) The duration of compulsory special education shall depend on the type and the degree of the disability and shall be of 8 years for children with psychical deficiencies and of 10-12 years for children with physical and sensor deficiencies.
- (8) In the primary cycle of special education in auxiliary schools for children with physical, sensor and speech deficiencies shall be employed only didactical staff with a special training (in olygo-freno-pedagogy, typhlo-pedagogy, deaf-pedagogy, logopaedics).
- (9) Teaching of school disciplines (grades V-VIII) in schools for children with physical and sensor deficiencies shall be performed by didactical staff, who had followed a specialization in recuperative psycho-pedagogy.
- (10) Vocational training of graduates from special education shall be performed according to the list of professions appropriate for this category of children, within special schools or in profession schools from vocational secondary education.

#### Article 34. Complementary education (extra-curriculum)

- (1) Education, at all levels and stages, shall be completed by extra-curriculum activities, meant to develop individual abilities and capacities, to satisfy diverse interest and options of the individual.
- (2) Extra-curriculum activities shall have a scientific, cultural-artistic, sport, tourist, technical-applicative profile.
- (3) Complementary education shall be organized in groups or individually in diverse extra-curriculum institutions (clubs, pre-school and student palaces, school camps, sport, tourist and entertainment clubs, etc.), as well as in institutions from the education network.
- (4) The order of organization and functioning of complementary education institutions shall be established by interested ministries and departments, by local public administration and coordinated with the Ministry of Education.
- (5) Complementary education shall be funded from the state and local budget, as well as from tuition fees, sponsorships, donations and other legal financial means.
- (6) Students and scholars may join voluntarily diverse associations, according to the provisions of the legislation in force.

#### Article 35. Education for adults

- (1) Education for adults shall secure for citizens the access to science and culture for their adaptation, by in-service training, to the changes in social life and for the development of their professional skills.
- (2) Education for adults shall be performed in diverse forms of tuition and self-training (day, evening, non-attendance, correspondence education, etc.), in an independent manner or based on a contract with different state or private education institutions: people's university, open universities, culture clubs, popular art schools, clubs, associations, foundations, courses organized by companies.
- (3) The institutions of education for adults may acquire the right to autonomy after being accredited, as prescribed by the law.
- (4) The institutions of education for adults shall be funded from sponsorships, donations and other legal means.
- (5) The Ministry of Education, the Ministry of Culture, the Ministry of Labor, Social Security and Family and the local public administration authorities shall coordinate and shall support the activity of institutions for adult education.

*[Para.5 Article 35 as amended under Law no. 1208-XIV of 28.07.2000]*

- (6) The persons who have assimilated individually the curriculum of an education level shall be entitled to take exams, and after having successfully passed them, shall receive the corresponding study certificate. The list of professions and specializations which may be acquired by means of self-training shall be approved by the Government.
- (7) The ministries, departments, companies and other legal entities, as well as natural persons may organize along with or separate from education institutions, vocational training and recycling courses for adults, for the purpose of qualification or re-qualification of own employees or of future employees, for the purpose of social protection of unemployed and their professional reintegration, under the terms established by the Ministry of Education and the Ministry of Labor, Social Security and Family.
- (8) For the purpose of adult education may be organized, with the approval of the Ministry of Education, open education or correspondence institutions and networks, which use modern communication and data processing technologies.

#### Article 36. Private education

- (1) Private education, including the cooperation one, shall constitute an alternative to state education.
- (2) Private education institutions may be created, reorganized or liquidated at the initiative of natural persons and legal entities, under the terms of the law.
- (3) Private education shall be organized and shall function on non-for-profit principles and shall strictly apply state educational standards.

*[Para.3 Article 36 as modified under Law no. 1208-XIV of 28.07.2000]*

- (4) The enrollment in private education institutions shall be performed according to the provisions established by the Ministry of Education for state institutions.
- (5) The scholars and students from private education may transfer to state education institutions, under the terms established by the Ministry of Education and the relevant ministries.
- (6) The diplomas or certificates issued by non-accredited private education institutions shall be acknowledged as equivalent of study certificates of state education, if the graduation exams have been taken according to the state educational standards before a commission appointed by the Ministry of Education.
- (7) The heads of private education institutions and its founders shall be responsible for the quality of education, for education and training conditions, in compliance with the legislation in force.
- (8) In private education institutions may be applied own curriculum, study plans, training methods, which secure the implementation of state educational standards.
- (9) Private education institutions shall employ and remunerate didactical staff according to the statute of the institution and to the labor legislation. Labor remuneration shall not be lower than the state education one.
- (10) Didactical and auxiliary staff from private education shall activate based on the legislation and labor contracts, concluded with the leadership of the respective institution.
- (11) In private education, tuition fees shall be established by each education institutions, under the terms of the law.
- (12) Private education institutions shall be funded from the founders' resources, from tuition fees and from other legal resources. Pre-school and compulsory general education institutions may benefit from state budget funding in the limits established for state education institutions, in the manner determined by the Government.
- (13) Private education institutions shall not be organized by means of privatization of state education institutions. The buildings, the premises and the technical-material basis of state institutions may be used by private institutions based on a lease contract.
- (14) Local public administration authorities may put at the disposal of private education institutions buildings, construction land, materials to organize the instructive-educative process. They may also contribute to the training of didactical staff, to student maintenance, as well as the consolidation of the technical-material basis of these institutions.
- (15) The corporation-supported education shall be performed in institutions, which are the ownership of corporation associations, and their funding shall be secured from the funds of these associations, from tuition fees and from other legal resources.
- (16) Private persons may practice individual activities of training (mentoring), authorized under the terms of the law.

#### Article 37. Accreditation of education institutions

- (1) State and private education institutions shall be subjected obligatory to accreditation, the accreditation process shall comprise two stages:

- a) issuing authorization (license), which grants the right to organize and temporarily function;
  - b) accreditation, which grants all rights prescribed by the present law.
- (2) The accreditation shall be solicited after obtaining the authorization: for kindergartens and primary schools- at most after 4 years, and for pre-university and higher education institutions - after the first graduation exam of the respective education level.
  - (3) The basic criteria for private education institutions shall concern didactical staff, education content, technical-material basis and economic-financial activity.
  - (4) In order to obtain the accreditation, the education institution: shall have at least 60% from the necessary didactical staff required for the respective institution; shall have a material-technical basis which will correspond to state educational standards; shall make use, during its temporary functioning, of at least 25 % from the revenues for investments in its own technical-material basis.

#### Article 38. Education content

- (1) Education content shall be elaborated on the basis of state education standards, shall have a formation-functional character and shall be differentiated in levels and stages.
- (2) The content of pre-university education at different levels and stages shall be secured by education plans and curriculum, approved by the Ministry of Education.
- (3) The education plans and curriculum, school textbooks and other didactical materials for state education institutions shall be elaborated on a contest basis and shall be implemented after having been coordinated with interested ministries and departments and approved by the Ministry of Education. In education institutions may be used alternative curriculum or textbooks, the content of which shall secure the implementation of state educational standards.
- (4) Education plans and curriculum for vocational training shall be elaborated by the Ministry of Education along with other departments and ministries, taking into consideration the proposals of vocational education institutions and of interested stakeholders, and shall be approved by the Ministry of Education, notwithstanding whom education institutions are subordinated to.
- (5) Education plans for all levels of tuition shall comprise compulsory, elective and optional disciplines. A larger importance shall be conveyed for elective and optional disciplines in graduation classes in gymnasium and lyceum education.
- (6) Education plans for higher education institutions shall be approved by the Ministry of Education, in compliance with state educational standards. The analytical programs shall be elaborated by chairs and shall be approved by the university senate, relying on the favorable advisory opinion of the faculty council.

#### Article 39. Libraries in education system

- (1) Libraries from education institutions shall be a component part of the education system and shall activate on the basis of a regulation, approved by the Ministry of Education.
- (2) The education system library personnel with specialized higher education shall enjoy the same facilities as the didactical staff of the respective institution.
- (3) Initial and in-service training of specialized personnel from education system libraries shall be secured by the Ministry of Education.

### Chapter III

#### MANAGEMENT OF THE EDUCATION SYSTEM

#### Article 40. Public authority ambit of competence

- (1) Public authorities shall:
  - a) determine the state policy in the field of education;
  - b) issue normative acts for the improvement of education legislation;
  - c) approve the creation, reorganization and liquidation of lyceum, vocational, higher education institutions, of special instructive-educative institutions, of scientific research institutions, of personnel in-service training institutions;
  - d) secure the development of a material-technical basis of the education system, establish the order of organization and performance of the internship by students and scholars;
  - e) approve the plan (state demand) for initial training of specialized personnel in vocational secondary education institutions and in higher education institutions;
  - f) establish and approve the annual subsidies for education system from the state budget, the order and the level of labor remuneration of didactical staff from state education institutions from all levels, as well as the requirements of material maintenance of scholars and students;
  - g) issue licenses for the activity of education institutions of all levels, stages and training forms (except budget ones);

*[Letter g) as worded under Law no. 1199-XV of 04.07.2002]*  
*[Letter g) as introduced under Law no. 328-XIV of 24.03.1999]*

  - h) sign with other states collaboration agreements on education and recognition of national study certificates;
  - i) exercise control over the activity of the Ministry of Education and assess its activity.
- (2) The competence delimitation between public authorities in the field of education shall be performed according to the Constitution and other normative acts.
- (3) Steering education bodies from the territories, which, according to the Constitution and to organic laws, have a special autonomy status, shall coordinate their activity with specialized central public administration authorities.

#### Article 41. Ministry of Education

- (1) The Ministry of Education shall be the central body of the public administration in the field of education.
- (2) The Ministry of Education shall coordinate its activity with the relevant ministries and departments in the field of vocational secondary education, of higher, post-graduate education, adult education and initial and in-service personnel training.
- (3) The Ministry of Education shall perform the control over the observance of the education legislation by means of state school inspection, instituted within the ministry. The regulation of the state school inspection shall be approved by the Government.
- (4) For the purpose of exercising its functions, the Ministry of Education may create consultative expert commissions and councils, based on professional and moral prestige criteria.
- (5) The Ministry of Education shall, mainly, have the following ambit of competence:
  - a) to elaborate the strategy and to promote the state policy in the field of education, to participate at the elaboration and promotion of the state policy for children and youth issues;
  - b) to promote the state linguistic policy, to monitor the observance of the legislation on the use of languages spoken on the territory of the Republic of Moldova;
  - c) to elaborate the strategy and to monitor the implementation of on-going development of the material-technical basis of all types of subordinated training and education institutions;
  - d) to elaborate and to monitor the implementation of state educational standards;



- e) to organize and coordinate the elaboration of curriculum, education plans, textbooks and of other didactical materials;
  - f) to establish, in collaboration with other ministries, departments and with local public administration authorities, the school network and the types of education institutions;
  - g) to participate at the elaboration of admission plans in subordinated education institutions and of the list of professions and of specialities;
  - h) to establish, under the terms of the law and jointly with the Ministry of Finances, Ministry of Labor, Social Security and Family, the admission quota per speciality in colleges and in university education;
  - i) to assess and to accredit education, in-service personnel training and recycling institutions;
  - j) to evaluate the didactical staff and to organize their in-service training and recycling;
  - k) to propose candidates for government awards;
  - l) to coordinate along with other ministries and departments the scientific research activity in subordinated higher education and research institutions;
  - m) to elaborate, along with the Ministry of Finances the norms and the order of funding by the state the education system;
  - n) to determine, along with the Ministry of Labor, Social Security and Family, the order and the terms for the remuneration of didactical staff and of other categories of personnel from education institutions;
  - o) to coordinate the financial activity of subordinated education institutions;
  - p) to sign, empowered by the government, collaboration agreements the field of education and science, to maintain collaboration relationships with relevant ministries and departments from abroad;
  - r) to appoint and dismiss from position the directors of state special, vocational secondary, lyceum education institutions, as well as the directors of state republican subordination education institutions;
  - s) to issue advisory opinions on awarding didactical titles of university professor or professor associate (docent);
  - t) to elaborate and approve the model regulation for pre-university education institutions and of model statute for higher education institutions;
  - u) to coordinate the tutorship and guardianship;
  - v) to equate study certificates concerning pre-university and higher education;
- (6) Ministry specialists, according to the list, shall be appointed in position by the minister, on a contest basis and relying on professionalism criteria established by a regulation approved by the Government.
- (7) Ministry specialists shall be subject to attestation once every 5 years, according to the criteria established by the regulation approved by the Government.

*[Article 41 as modified under Law no. 1279-XV of 25.07.2002]*

*[Article 41 as modified under Law no. 1199-XV of 04.07.2002]*

*[Article 41 as modified under Law no. 1208-XIV of 28.07.2000]*

*[Article 41 as modified under Law no. 328-XIV of 24.03.1999]*

#### Article 42. The ambit of competence of other ministries and departments

The relevant ministries and department shall:

- a) elaborate the main direction of speciality education, state educational standards and monitor their implementation;
- b) organize the in-service training and recycling of specialist from this branch;

- c) guarantee the funding of subordinated education institutions and the development of their technical-material basis.

#### Article 43. Education directions

- (1) Steering specialized education bodies shall be the education direction, who activate in judets<sup>3</sup> and municipalities.
- (2) The structure of education directions shall be established by the Government, at the proposal of the Ministry of Education
- (3) The general director of the education direction shall be proposed by the local public administration authority, relying on the criterion of professionalism and managerial skills, and shall be appointed in position by means of an order of the minister of education.
- (4) A school inspection shall activate within the education direction, relying on a regulation, approved by the Ministry of Education.
- (5) Discipline school inspectors and methodology specialists shall be appointed in position by the general director of the education direction, on a contest basis and relying on the criteria of professionalism.
- (6) School inspectors shall have access to all education institutions situated on their territory of jurisdiction.
- (7) In each judets center, city (municipality) shall activate methodology offices, methodical-psychopedagogical centers, psychological services, inspectorates for child protection and medical-psychopedagogical commissions, subordinated to education directions. The structure and competence of these units shall be established by regulations approved by the Government.

*[Article 43 as modified under Law no. 1279-XV of 25.07.2002]*

*[Article 43 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 44. Ambit of competence of education directions

Education directions shall:

- a) secure in their territorial range the observance of the education legislation and promote state policy in the field of education;
- b) guarantee the collaboration between subordinated education institutions with local public administration authority and with the Ministry of Education;
- c) monitor the activity of pre-university education network and perform school inspection;
- d) organize the implementation of new education plans, curriculum and didactical methodologies in the instructive-educative process;
- e) organize for education institutions their didactical-material insurance and grant didactical staff methodical assistance;
- f) organize and coordinate the optimization activity of subordinated pre-university education institutions, contribute to their funding and to the development of their technical-material basis;
- g) coordinate the tutorship and guardianship;
- h) secure, along with local public administration authorities, adequate conditions for the activity of didactical staff and of scholars, their social protection;
- i) organize the in-service training of didactical staff;
- j) coordinate the organization of graduation exams in education institutions and of school contest (olympiads);

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<sup>3</sup> *Judets* is an administrative territorial unit. (transl.note)

- k) guarantee, along with local public administration authorities, the compulsory education of scholars aged till 16;
- l) appoint and dismiss from position directors of subordinated pre-school, primary, gymnasium, general secondary, complementary (extra-curriculum), artistic and sport state education institutions, having prior consulted local public administration authorities of the corresponding level.

*[Article 44 as modified under Law no. 1279-XV of 25.07.2002]*

*[Article 44 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 45. Ambit of competence of local public administration authorities

Local public administration authorities, in the field of education, shall mainly:

- a) monitor the observance of education legislation in their territorial range;
- b) keep record of children of compulsory school age and guarantee their education till aged 16;
- c) insure the social protection of didactical staff from education institutions (distribution of service accommodation, granting facilities, under the terms of the legislation in force, etc);
- d) create, reorganize or liquidate subordinated state pre-school and extra-curriculum institutions, primary schools and gymnasium, with the consent of the Ministry of Education, and make proposals to create or liquidate lyceums and vocational secondary education institutions;
- e) decide the placement and keep record of private education institutions in their territorial range;
- f) keep record and organize the tutorship of orphan children or without legal guardians, as well as their adoption or distribution in orphanages, boarding schools or family placement;
- g) secure labor placement for orphan graduates, as well as for persons with psychic, physical or other type of disability;
- h) offer material and other kind of aid to families with pre-school children and children of compulsory school age, under the prescribed terms;
- i) guarantee free of charge transportation of scholars to and from education institutions in rural areas , at distances exceeding 3 km;
- j) organize free of charge medical assistance and children nourishment, leisure time and recovery of students and scholars during vacation.

*[Article 45 as modified under Law no. 1279-XV of 25.07.2002]*

*[Article 45 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 46. Administrative and consultative bodies

(1) In the education system shall activate the following administrative and consultative bodies :

- a) at the republican level:  
the Council (Board) of the Ministry of Education, chaired by the minister. The Board members shall be appointed by a Government decision;
- b) at the local level:  
administration council of the judets, municipal education direction, chaired by the general director of the education direction and comprising general director, deputy general directors, school inspection chief, chief accountant and chief of the methodical office;

consultative council of the judets, municipal education direction, approved by the respective executive committee and comprising directors of education institutions, other prestige didactical staff, representative of parents, of local public administration and of economic units;

*[Letter b) as modified under Law no. 1208-XIV of 28.07.2000]*

c) in pre-university education institutions:

teachers' board of the education institution, comprising didactical staff and chaired by the director;

administration board of the education institution, comprising the director, deputy directors, chief accountant, didactical staff chosen from the teachers board, representatives of parents, of local public administration, of scholars (in lyceums and profession schools). The director of the education institution shall chair the administration board.

d) in higher education institutions:

university senate of the education institution, chaired by the rector;

bureau of university senate, comprising the rector, pro-rectors and scientific secretary;

university administration board;

faculty board, chaired by the dean;

department scientific council, chaired by the director of the department;

college teachers board;

college administration board.

- (2) The structure and the competence of bodies in higher education institutions shall be established by the University Charter, and of pre-university education institutions - by the statute of the respective institutions.
- (3) Students shall be represented in the university senate, in the faculty board, in the administration board of the education institution in a ratio of at most 1/4 of their members.
- (4) Scholars and parents may constitute boards, activating in compliance with the statute of the respective education institution.
- (5) The Ministry of Education, education directions shall organize periodically for didactical staff congresses and conferences with a constructive and methodological role.

#### Article 47. Administration of pre-university education institutions

- (1) Pre-university education institutions shall activate in compliance with the provisions of the present law and shall be responsible for the implementation of state educational standards, for the protection of children's and personnel rights, as well as for the protection of scholars life and health.
- (2) The activity of pre-university education institutions shall be regulated by a statute, elaborated according to a model statute and approved by the hierarchically superior education management body.
- (3) The pre-university education institution, in general, shall have the following competence:
  - a) to determine appropriate educational technologies;
  - b) to establish the assessment and monitoring methods of the education process;
  - c) to elaborate the statute of the institution or the internal regulation;
  - d) to appoint and dismiss from position, under the terms of the law, didactical staff from state education institutions, after a preliminary coordination with the education direction - for locally subordinated education institutions and, respectively, with the Ministry of Education

for special, vocational secondary, lyceum state education institutions as well as those subordinated at republican level;

- e) to appoint and dismiss from position, under the terms of the law, support personnel;
  - f) to contribute to the development of the technical-material and didactical basis, and its rational use;
- (4) Depending on the performed level of education, pre-university education institutions shall be distinguished:
- Kindergarten (age 5-7 years);
  - Primary school (grades I-IV);
  - Gymnasium (grades V-IX);
  - Lyceum (grades X-XII (XIII));
  - General secondary school (grades X-XI).
- (5) In case the primary school and gymnasium activate under a single administration, the education institutions shall be called a gymnasium, and in case there is a single administration of a primary school, gymnasium and lyceum, then the education institution shall be called a lyceum.
- (6) Pre-university state education institutions shall be subordinated to the Ministry of Education and to local public administration.
- (7) Pre-university education shall be managed by directors, who shall exercise their management tasks jointly with the teachers and administration boards.
- (8) The directors of pre-university state education institutions shall be appointed in position on a contest basis for a 4-year period.
- (9) Pre-university education institutions may establish collaboration relationships and direct contacts with similar education institutions from abroad, under the terms of the legislation in force.
- (10) Orphanages and boarding schools shall activate for orphan children or for children without legal guardians.

*[Article 47 as modified under Law no. 1279-XV of 25.07.2002]*

*[Article 47 as modified under Law no. 1208-XIV of 28.07.2000]*

#### Article 48. Administration in higher education institutions

- (1) Higher education institutions shall comprise faculties, departments, chairs, laboratories and other units (sections) for scientific research, projects and small range production.
- (2) Colleges and lyceums (grades X-XII) may affiliate to higher education institutions. The college may be a functional unit of the higher education institution.
- (3) The higher education institution shall be managed by the university senate, chaired by the rector; the faculty - by the faculty board, chaired by the dean; the department - by the scientific council, chaired by the director; the chair - by the chief of chair. The daily management of the higher education institution shall be performed by the university senate bureau. The short-term higher education institution (college) shall be managed by the teachers' board, chaired by the director.

*[Para. 3 Article 48 as amended under Law no. 1208-XIV of 28.07.2000]*

- (4) The rector of the higher education institution shall be elected on a contest basis by the university senate, except rectors of higher education institutions of the Ministry of Interior, Ministry of Defense and of the Information and Security Service of the Republic of Moldova, who shall be appointed in position by the respective authorities. The rectors of all higher education institutions shall be confirmed in position by the Government. The rector shall be considered in exercise of his position after having been confirmed by the Government.

*[Para. 4 Article 48 as modified under Law no. 543-XV of 12.10.2001]*

*[Para. 4 Article 48 as worded in the Law no. 259-XIV of 24.12.1998]*

- (5) The activity of higher education institutions shall be regulated by the University Charter, adopted by the university senate.
- (6) The rectors of higher education institutions may organize the board of rectors, body with consultative competence.
- (7) The director of college shall be appointed on a contest basis for a 4-year mandate and shall be confirmed in position by the relevant ministries.

*[Para. 7 Article 48 as amended under Law no. 1208-XIV of 28.07.2000]*

#### Article 49. University autonomy

- (1) State higher education institutions may acquire the status of university autonomy, under the terms established by the Government.
- (2) University autonomy shall refer to management, organization and activity of the institution, didactical and scientific research activity, administration and funding, and shall be exercised, mainly, by means of:
  - a) the organization, performance and improvement of the education process and of scientific research;
  - b) the establishment of specialization;
  - c) the elaboration of study plans and analytical programs in compliance with state educational standards;
  - d) the admission of students;
  - e) the selection and promotion of didactical staff and of other category personnel;
  - f) the determination of assessment criteria for didactical and scientific activity;
  - g) awarding didactical titles;
  - h) the eligibility of all steering bodies by secret voting;
  - i) finding solutions for social problems of students of personnel;
  - j) securing the order and the discipline in the university space;
  - k) finding additional revenue sources;
  - l) the creation of collaboration relationships with diverse education and scientific institutions, centers and organization from the country and from abroad.
- (3) From the financial point of view, university autonomy shall be exercised as a right to manage, in compliance with the law and on personal liability, the funds granted from the budget or from other legal sources.

#### Article 50. Assessment in education

- (1) The assessment of the education system and process shall be secured by the Ministry of Education, by ministries, which have in their subordination education institutions, by local education management bodies, relying on a regulation, approved by an order of the minister.
- (2) The Ministry of Education shall guarantee the periodical assessment of the vocational and methodical training level of didactical staff and management staff of the education system.

*[Para. 2 Article 50 as amended under Law no. 1208-XIV of 28.07.2000]*

- (3) The assessment of educational results shall be mandatory performed at each education level, in compliance with the objectives and the final tasks of the curriculum.

- (4) The education institution shall be autonomous in choosing the order and the forms of continuous assessment of scholars' knowledge.
- (5) Didactical and management staff of state pre-university education institutions shall be assessed once every 5 years.

*[Para. 5 Article 50 as amended under Law no. 1208-XIV of 28.07.2000]*

- (6) The assessment of didactical and management staff shall be performed in compliance with the criteria established by the Ministry of Education, which rely on professionalism, quality of didactical activity, methodical-pedagogical and psychological training, ability to assess educational results.

*[Para. 6 Article 50 as amended under Law no. 1208-XIV of 28.07.2000]*

- (7) Assessment results shall constitute ground for awarding didactical degrees, for establishing the salary or increases in salary, as well as for the dismissal from position.

#### Article 51. Activity reports

- (1) The judets (municipal) education direction shall elaborate, at the end of each academic year, an activity report on the state of affairs of the education in that territorial range, to be submitted to the Ministry of Education, to the local public administration authority.

*[Para. 1 Article 51 as modified under Law no. 1208-XIV of 28.07.2000]*

- (2) The rectors of higher education institutions shall elaborate, at the end of each academic year, an activity report of the education institution, to be submitted to the Ministry of Education.
- (3) The Ministry of Education shall submit to the Government on an annual basis an activity report on the status of affairs in the education system and on its education development directions.
- (4) The annual activity reports shall be published.

### Chapter IV

#### EDUCATION PERSONNEL. SCHOLARS, STUDENTS AND PARENTS.

##### THEIR RIGHTS AND OBLIGATIONS

#### Article 52. Education personnel

Education personnel shall comprise didactical staff, scientific personnel, auxiliary didactical staff and support personnel.

#### Article 53. Didactical staff

- (1) In pre-university education, the didactical staff shall consist of:
  - a) teacher in pre-school, primary and special education;
  - b) speech therapist in pre-school, primary and special education;
  - c) school psychologist in pre-university education;
  - d) school teacher in primary education (grades I-IV);
  - e) school teacher in secondary education (gymnasium, lyceum, vocational);
  - f) trainer, master-trainer in secondary vocational training;
  - g) social assistant in scholar hostels.
- (2) In higher education, the didactical staff shall consist of:
  - a) social assistant in student hostels;
  - b) university assistant;

- c) university lecturer;
  - d) senior university lecturer;
  - e) university associate professor (docent);
  - f) university full professor.
- (3) The conditions for holding positions of didactical staff in education shall be determined by the Ministry of Education.
  - (4) The didactical workload of education personnel shall be determined by the Government at the proposal of the Ministry of Education, jointly with the Ministry of Labor, Social Security and Family.
  - (5) The remuneration of didactical staff shall be performed depending on the level of studies, held position, didactical title and degree, scientific title, as well as on the work experience. The minimum salary of didactical staff shall not be lower than the average salary of employees in the national economy.
- [The application of para. 5 Article 53 for year 1999 shall be suspended to the extent in which it concerns the amount of the minimum salary, as prescribed under the Law no. 216-XIV of 12.12.1998]*
- (6) For the highest didactical degree shall be afforded an increase to the salary of 50 % from the position salary, for the first degree - of 40 % and for the second degree- 30 %.

#### Article 54. Initial, in-service training and recycling of didactical staff

- (1) The training of didactical staff shall represent a priority and shall determine the development of education.
- (2) The training of didactical staff shall be performed only at the university level, according to education plans comprising also disciplines of theoretical and practical training in the field of pedagogy, psychology and specialized methodology.
- (3) The graduates of higher education institutions of a profile other than the pedagogical one may teach in education only if they had followed training for the disciplines set under para.2.
- (4) For didactical staff, the state shall secure in-service training opportunities for specialized, methodological and psycho-pedagogical training or professional recycling in order to obtain qualification degrees or categories.
- (5) The in-service training and the recycling of all didactical and management staff shall be performed, usually, in higher education faculties or in other institutions, accredited under the terms of the law.
- (6) Specialized, methodological and psycho-pedagogical in-service training of didactical staff from pre-university education, as well as the initial and in-service training of management and inspection didactical staff shall be organized and coordinated by the Ministry of education.
- (7) The in-service training of didactical staff from higher education shall be performed as post-graduate education, internship, programs of specialization, scientific research and other programs, carried out in the country or abroad.
- (8) The in-service training of didactical staff shall be mandatory and shall be performed at least once every 5 years, having as objective of permanent maintenance of the qualification level in compliance with the most recent conceptual, methodological, curriculum and technological achievements in the field of education.
- (9) The recycling or the specialization of didactical staff shall be performed depending on the requirements of the education system and on individual options.



- (10) Didactical and management staff may solicit to be awarded didactical and managerial degrees. The order of awarding didactical and managerial degrees shall be established by the Ministry of Education.

*[Para. 10 Article 54 as worded under Law no. 1208-XIV of 28.07.2000]*

#### Article 55. Rights of didactical staff

Didactical staff shall be entitled:

- a) to choose the curriculum, teaching forms and methods, textbooks and didactical materials, approved by the Ministry of Education, which they consider to be appropriate for the implementation of state educational standards;
- b) to take part at the democratic election of their representatives in administrative and consultative bodies of the education institution;
- c) to have included in their pedagogical work experience the didactical activity carried out in pre-university education, in case of their transfer to higher education;
- d) to preferential service accommodation, to prolonged annual leaves, free of charge medical assistance, discounts for utility expenditures, in compliance with the legislation in force, and in rural areas - other facilities provided for specialists in agriculture;

*[Letter d) as modified under the Law no.552-XIV of 28.07.1999]*

- e) to be granted, on a contractual basis, a leave not longer than 3 months, having their salary preserved, in order to elaborate textbooks, methodological works, monographs, upon the demand of the Ministry of Education.

#### Article 56. Obligations of didactical staff

Didactical staff shall be bound:

- a) to respect ethical norms, and to promote them, by their personal conduct, moral principles of justice, equity, humanism, generosity, diligence, patriotism and other virtues;
- b) to secure the appropriate performance of the instructive-educative process, the in-depth assimilation of the curriculum and the development of scholars and students capacities;
- c) to insure the life security and health protection of children during the education process;
- d) to perform the education and training process in the spirit of respect towards the family, parents, adults, respect for cultural, spiritual, national and universal values, to promote a nurturing attitude towards the environment;
- e) to continuously enhance their professional qualification, pedagogical mastership;
- f) to refrain from chauvinist, nationalist, political, religious, militarist propaganda, being incompatible with pedagogical activity;
- g) to refrain from involving scholars in street actions (meetings, demonstrations, picketing, etc.).

#### Article 57. Right of scholars and students

- (1) In education institutions of all levels shall be respected the rights and liberties of scholars and students. There shall be prohibited all corporeal punishments, application of any physical or psychic violence methods.

- (2) Scholars and students, mainly, shall be entitled:

- a) to express freely their opinions, beliefs, ideas;
- b) to choose the type of education institution, the curriculum, approved by the Ministry of Education, for elective and optional disciplines;

- c) to provided, in the prescribed order, with stipend, hostel, boarding, textbooks, medical assistance, nourishment, transportation service;
  - d) to be elected in administrative and consultative bodies of the education institution;
  - e) to benefit from paid annual leave from their working place, from reduced labor week and from other facilities, prescribed by the legislation, in case they follow non-attendance courses.
- (3) Scholars and students shall enjoy as well other rights, prescribed by the statute of the education institution.
- (4) For the exercise of the right to education by scholars and students who need social assistance, the state shall cover, totally or partially the maintenance expenditures for the period of schooling. The categories of persons who are entitled to benefit from such support, as well as its forms and extent shall be established by the Government.
- (5) The state shall cover, partially or totally, the expenditures for the maintenance of scholars and students, in need for social protection and support, including those in sanatorial or family type schools, according to the existent norms.
- (6) The state shall create for gifted persons favorable conditions for studies within the country or abroad. The respective category of persons shall be established by a commission, designated by relevant ministries.

#### Article 58. Obligations of scholars, students and graduates

- (1) Scholars shall be bound to follow obligatory education and to meet the requirements of the education institution statute, to assimilate the subjects set in the curriculum, to attend classes.
- (2) The graduates of higher education institutions shall be bound to know the state language in the limits of the respective institution's curriculum.
- (3) In case the graduate who has studied on a contractual basis refuses to come to work or suspends his activity in the organization or company that had recommended him for studies, before the expiry of the 5-year term, the graduate shall be bound to reimburse all tuition expenses.
- (4) Scholars and students shall also bear other obligations, prescribed by the internal regulation of the education institution.
- (5) The violation of internal regulation of the higher education institution, committed by students, shall entail their sanctioning, up to expelling.

#### Article 59. Health protection in education institutions

Medical institutions of the Ministry of Health and department medical institutions shall secure the performance of the entire complex of measures meant for health protection of pre-scholars, scholars and students, as well as of didactical staff from the education system.

#### Article 60. Right and obligations of parents

- (1) Parents or guardians shall be entitled:
  - a) to choose for children the education institution and the tuition language;
  - b) to solicit the observance of child's rights and freedoms in school;
  - c) to take knowledge about the content of the education process, about how it is unfolding, as well as about the assessment results of scholars;
  - d) to educate the child within the family, guaranteeing him the possibility to get the appropriate tuition at a certain education level;
  - e) to be elected in administrative and consultative bodies of the education institution.
- (2) Parents and guardians shall be bound:

- a) to guarantee the child's integration in one of the obligatory education forms (state or private) or to offer him tuition within the family;
  - b) to secure the child's education within the family and to create for him appropriate conditions for studies, ability development, extra-school activity and self-training.
- (3) Parents and guardians who do not contribute to the child's education and tuition shall be held responsible according to the legislation in force.

## Chapter V

### FUNDING OF EDUCATION SYSTEM. ITS TECHNICAL-MATERIAL BASIS.

#### Article 61. Funding of education system

(1) Education shall be funded as a priority. The main source of funding of the state education system shall constitute the budget resources.

(2) The state shall guarantee the annual disbursement of financial means for education of at least 7% from the gross national product, including currency means, and shall secure the protection of budget expenditure lines.

*[The application of para.2 Article 61 shall be suspended for year 1999 as prescribed under the Law no. 216-XIV of 12.12.1998]*

(3) The funding norms of education institutions shall be indexed according to the inflation rate.

*[The application of para.3 Article 61 shall be suspended for year 1999 as prescribed under the Law no. 216-XIV of 12.12.1998]*

(4) The state education system institutions may benefit from other financial sources as well, such as:

- a) means obtained from the initial, in-service training, recycling of personnel, from scientific research performed on a contractual basis;
- b) revenues obtained from trading with goods manufactured in the education process (in didactical, experimental workshops, etc.), as well as from leasing space, constructions, equipment;
- c) donations and revenues obtained from international collaboration (cooperation), as well as donations from natural persons and legal entities.

(5) The Ministry of Education shall be entitled to form and use the extra-budgetary fund for supporting some activities in the field of education. The order of creation and use of the aforementioned fund shall be established by the regulation approved by the Government. The extra-budgetary fund for supporting such activities in the field of education shall be approved by the Law on the state budget of the respective year.

*[Para. 5 Article 61 as modified under the Law no. 1132-XV of 14.06.2002]*

(6) The sources for creating the extra-budgetary funds for supporting some activities in the field of education shall represent the disbursements of higher education institutions, including those of colleges, notwithstanding their type of ownership, in the amount of 1 % from the revenues obtained from leasing space, fixed assets and from other extra-budgetary revenues, except tuition fees for training on a contractual basis.

*[Para.6 Article 61 as modified under the Law no. 1132-XV of 14.06.2002]*

- (7) Education may be supported by companies, professional associations and employers' associations.
- (8) The state vocational education institutions may be funded from the means disbursed by economic agents, as well as from non-budgetary and private resources. The non-budgetary disbursements, notwithstanding their amount, may not determine the decrease of budgetary means disbursed for vocational education.
- (9) The state shall secure the priority funding of scientific investigations, organized in education.
- (10) The part of revenues from economic agents, as well as of natural persons, directed for education development shall be exempted from tax.

*[Para.9 Article 61 excluded under Law no. 523-XV of 11.10.2001, the other paragraphs are renumbered]*

*[Para. 9 Article 61 as worded under the Law no. 439-XV of 27.07.2001]*

*[Para.9 Article 61 as amended under the Law no. 493-XIV of 09.07.1999]*

*[Para.9 Article 61 as amended under the Law no.1592-XIII of 27.02.1998]*

- (11) The means disbursed by economic agents for the organization and performance of the internship and apprenticeship of those disbursed by them for the consolidation of the technical-material basis of vocational and profession schools, as well as for training qualified workers, masters and technicians, shall be exempted from tax.
- (12) The budgetary means disbursed for education and the revenues of instructive-educative institutions obtained from legal sources shall be intangible.
- (13) The currency means shall also be intangible and shall be used for the consolidation the technical-material basis of the education institution and for the improvement of didactical staff social conditions.
- (14) The education institution shall organize independently the disbursed and available financial means, shall have an independent balance and opened bank accounts, including bank accounts in foreign currency.
- (15) The financial means unused by the end of the year shall not be withdrawn and may not be included by the founder in the funding quota of the following year.

#### Article 62. The technical-material basis of the education system

- (1) The technical-material basis of the education system shall comprise buildings, engineer installations, libraries, laboratories, workshops, clinics, land, didactical workshops, application schools and kindergartens, equipment, transportation means and other technical-material means provided by norms.
- (2) The development of the technical-material basis shall be performed from budgetary means and from education institution funds.
- (3) The state shall guarantee as a priority the development of the technical-material basis of the education system, the equipment of education institutions according to world standards, the construction of buildings for education and training, of sport and entertainment clubs, accommodation space for didactical staff, hostels for scholars and students.
- (4) Ministries, departments, economic agents and local public administration authorities shall be entitled to transfer to education institutions equipment, installations, transportation means, accommodation space, land, etc, as sponsorship or coverage of expenditures for initial or in-service training of specialists or for other services.

*[Para.5 Article 62 excluded under Law no. 523-XV of 11.10.2001, the other paragraphs are renumbered]*

*[Para. 5 Article 62 as amended under the Law no. 493-XIV of 09.07.1999]*

*[Para.5 Article 62 as amended under the Law no.1592-XIII of 27.02.1998]*

*[Para.6 Article 62 excluded under Law no. 523-XV of 11.10.2001, the other paragraphs are renumbered]*

- (5) The alienation and transfer of buildings, constructions and afferent land, who belong to education institutions, for other purposes than training, education and cultural enlightenment, shall be prohibited.

*[Para. 5 (6,7) Article 62 as worded under the Law no. 389-XIV of 07.05.1999]*

- (6) Education institutions shall be speared of the obligation to grant local public administration authorities a part from the accommodation space build out of own means.
- (7) Education institutions may not lease premises, which do not belong to them, save for the existence of the education steering bodies consent.
- (8) The number of children and scholars shall be planned, according to the established requirements, deriving from the number of available places in study rooms and in hostels.

## Chapter VI

### FOREIGN RELATIONSHIPS IN EDUCATION SYSTEM

#### Article 63. International cooperation

- (1) International cooperation in the field of education shall be performed in compliance with the legislation of the Republic of Moldova.
- (2) The Ministry of Education shall be entitled to establish relationships and to conclude bilateral collaboration agreements, to participate at international projects and events in the field of education and scientific research.

#### Article 64. Education abroad

- (1) The Republic of Moldova nationals shall be entitled to study abroad, relying on inter-state and inter-governmental or inter-ministry collaboration agreements, as well as on individual contracts concluded with the foreign education institution, and by means of the system for transferable study credits.

*[Para.1 Article 64 as amended under the Law no. 1208-XIV of 28.07.2000]*

- (2) The persons following studies abroad based on collaboration agreements shall enjoy the facilities, established by the Government.
- (3) The Republic of Moldova national, graduates of foreign education institutions shall enjoy, in labor placement, same rights as graduate of the same degree Moldovan education institution.

#### Article 65. Rights and obligations of foreign scholars and students

- (1) Foreign nationals and stateless persons may be matriculated in education institutions in the Republic of Moldova, relying on:
  - a) international conventions, the Republic of Moldova is party to;
  - b) inter-state, inter-governmental and inter-ministry agreements, as well as agreements between education institutions, authorized as prescribed;
  - c) individual contracts signed with education institutions.
- (2) The education of foreign nationals and stateless persons shall be performed in the state official language or, upon the request of the candidates, in another language, depending on the possibilities of the education system.

- (3) Foreign nationals and stateless persons who study in the Republic of Moldova, save those who have scholarships from the Moldovan state, shall pay tuition fees, as established by the Government.
- (4) Foreign national and stateless persons, matriculated in the republic of Moldova shall observe its Constitution.

## Chapter VII

### FINAL AND TRANSITORY PROVISIONS

#### Article 66

- (1) The structural-systematic reform of the education shall be performed during a transition period, until 2005, on the basis of the State Programme for the development of the education in the Republic of Moldova, approved by Parliament.
- (2) General secondary schools (of 11 years) shall continue their activity till the end of the transition period to the new structure of the education system. On the need to maintain general secondary schools shall be revised in year 2005.
- (3) General secondary schools shall be reorganized gradually either in gymnasiums, or lyceums, depending on their didactical potential and technical-material basis.
- (4) During the transition period, graduates of general secondary schools, of technical-professional schools and of technical colleges shall have access to higher education, on a contest basis.
- (5) Until 2005, pedagogic colleges (normal schools), gradually transforming into general theoretical or pedagogical profile lyceums, in colleges or faculties of university education, shall guarantee, along with universities, the initial training of teachers for primary education and pre-school education.

#### Article 67

- (1) The violation of the present law provisions shall entail, if necessary, material, disciplinary, administrative or criminal responsibility, according to the legislation.
- (2) The violations of the present law provisions on securing school attendance of scholars in obligatory education, committed by parents and guardians, shall constitute administrative offences and shall be sanctioned according to the legislation in force.
- (3) The provisions of the present law shall be completed with other laws determining and sanctioning administrative offences in the field of education.

#### Article 68

Before the drafting of the present law, the criteria and order of assessment and accreditation of private education institutions shall be established by a Government decision, based on the present law, deriving from the creation of the necessary didactical-material basis and creation of chairs with highly qualified specialists.

#### Article 69

- (1) The present law shall enter in force at the date of its publication,
- (2) The Ministry of Education, during 3 months from the publication of the present law, shall elaborate and submit for approval to the Coordinating Board for the education reform in the Republic of Moldova and to the Government, the State Programme for education development; shall bring its own normative acts in compliance with the present law.
- (3) There shall be abrogated:

The Law of Moldovan SSR no. 324-IX of 24 December 1975 on public education (News of Supreme Soviet and of Moldovan SSR Government, 1975, no.12, Article 140; 1980, no.2, Article 11; 1986, no.7, Article 66);

Article 3 of the Directive<sup>4</sup> of the Supreme Soviet Presidium of Moldovan SSR no. 1788-XI of 31 March 1987 on the modification of some legislative acts of Moldovan SSR (News of the Supreme Soviet and of Moldovan SSR Government, 1987, no.4, Article 50).

President of  
Parliament

Petru Lucinschi

Chişinău, 21 July 1995.  
No. 547-XIII

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<sup>4</sup> *Ukaz* (transl. note).